

3.	25CV3075	DEEPAK PATEL ET AL VS. ARVO SOLAR, A BUSINESS ENTITY FORM UNKNOWN ET AL
MOTION TO COMPEL / DEEM REQUESTS FOR ADMISSIONS AS ADMITTED		

Before the Court are three motions: 1) Plaintiffs/Cross-Defendants' Motion to Deem Requests for Admissions as Admitted; 2) Plaintiffs/Cross-Defendants' Motion to Compel Responses to Document Requests and for Monetary Sanctions; and 3) Plaintiffs/Cross-Defendants' Motion to Compel Responses to Form Interrogatories to Arvo Solar and Jon Horton (collectively the "Discovery Motions").

On June 19, 2026 Plaintiffs/Cross-Defendants, Deepak Patel and Divya Patel (collectively "Plaintiffs"), electronically served the following on Defendants/Cross-Complainants, Arvo Solar and Jon Phillip Horton (collectively "Defendants"): 1) Request for Production of Documents, Set Two, to Defendant Horton; 2) Request for Production of Documents, Set One, to Defendant Arvo Solar; 3) Requests for Admission, Set One, to Defendant Arvo Solar; 4) Requests for Admission, Set Two, to Defendant Horton; 5) Form Interrogatories, Set One, to Defendant Arvo Solar; and 6) Form Interrogatories, Set Two, to Defendant Horton (collectively the "Discovery Requests"). Plaintiffs request sanctions in the amount of \$547.50 (Form Interrogatories), \$547.50 (Request for Production of Documents), and \$900 (Request for Admissions).

Plaintiffs allege Defendants failed to serve timely responses to the Discovery Requests by the July 21, 2026, deadline. On July 23, 2026, Plaintiffs' counsel asserts that Defendants' counsel requested a three-week extension and referred to potential new counsel. Plaintiffs offered a conditional extension through September 13, 2026, but Defendants' counsel did not agree to the conditions.

The Declaration of Richard F. Weiner provides that he requested a few days extension which Plaintiff's counsel would not provide unless objections were waived. Defendants' counsel advised Plaintiff's counsel would receive the responses as soon as possible but Plaintiffs' counsel proceeded in filing the underlying motion. As for the second set, Defendants' counsel did not realize they had been served, as they were attached in an email which included other papers from Plaintiffs' counsel and he did not realize they were included.

On July 30, 2026, Defendant Arvo Solar's Response to Form Interrogatories, Set One, and Response to Request for Admissions, Set One, were served. On August 6, 2026, Defendant Arvo Solar's Response to Request for Production of Documents, Set One, was served. Defendant Horton's Response to Request for Production of Documents, Set Two, Response to Form Interrogatories, Set Two, and Response to Request for Admissions, Set Two, were served on August 24, 2026. A subsequent response with new verifications was served on August 27, 2026.

As Defendants served verified responses to the Request for Admissions, Plaintiffs do not press the request for an order deeming the matters admitted but maintain their request for sanctions. Plaintiffs argue that the late responses to Defendant Horton's Form Interrogatories do not restore the objections waived by operation of law and the substantive responses to Form Interrogatory No. 17.1 remain materially incomplete. Regarding the Request for Production of Documents, Plaintiffs assert that the late responses do not restore objections that were waived by operation of law and the responses remain deficient.

Code of Civil Procedure § 2030.290 provides if a party to whom interrogatories are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Answers must be complete and responsive. Thus, it is not proper to answer by stating, "See my deposition", "See my pleading", or "See the financial statement". Indeed, **if a question does require the responding party to make reference to a pleading or document, the pleading or document should be identified and summarized so the answer is fully responsive to the question.** (See California Civil Discovery Practice, Section 8.55 (C.E.B.1975); 4A Moore's Federal Practice (2d Ed. 1975), Section 33.25(1), pp. 33-131 to 33-132; State Road Dept. v. Florida East Coast Ry., 212 So.2d 315, 317(1) (Fla.App.1968).) See also Propriety of Answer to Interrogatory Merely Referring to Other Documents or Sources of Information. 96 A.L.R.2d 598...**A broad statement that the information is available from a mass of documents is insufficient.** (See California Civil Discovery Practice, Section 3.49 (C.E.B.1975); Daiflon v. Allied Chemical Corporation, supra, 534 F.2d 221, 226; Flour Mills of America v. Pace, 75 F.R.D. 676, 681-682 (E.D.Okl.1977); Harlem River Consumers Co-op v. Associated Growers of Harlem, supra, 64 F.R.D. 459, 463; Budget Rent-A-Car of Missouri, Inc. v. Hertz Corp., 55 F.R.D. 354, 356-357 (W.D.Mo.1972).) *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-785 [149 Cal.Rptr. 499, 510] (emphasis added).

The Court finds that Defendant Horton did not substantially comply with Code of Civil Procedure § 2030.290(a)(1). Defendant Horton failed to provide witness contact information for Golden Gate Electrical Service Partnership and City of Placerville personnel and did not identify

the documents with the specificity required. Plaintiffs' motion to compel responses to Form Interrogatories, Set Two, as to Defendant Horton is granted. Defendant Horton is ordered to serve verified, code-compliant responses without objections to all requests, within ten (10) days of the Court's Order.

Code of Civil Procedure § 2031.300 provides if a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

The Court finds that Defendant Horton failed to provide a response to Request for Production of Documents, Set Two, request number 83. Additionally, the responses are not in substantial compliance pursuant to Code of Civil Procedure § 2031.300(a)(1). Plaintiffs' motion to compel responses to Request for Production of Documents, Set Two, as to Defendant Horton is granted. Defendant Horton is ordered to serve verified, code-compliant responses without objections to all requests, within ten (10) days of the Court's Order.

Regarding the request for monetary sanctions, sanctions are mandatory for one who "unsuccessfully makes or opposes a motion to compel a response...unless [the court] finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust" Cal. Civ. Pro. §2030.290 (interrogatories), § 2031.300(c)(requests for production) & § 2033.280(c)(requests for admission). In all other circumstances, the imposition of discovery sanctions is permissive. This includes instances where there has been no opposition and discovery responses were served after the filing of the motion. Cal. Rule of Ct., Rule 3.1348(a).

Here, while responses to the discovery requests have been served, it remains that they were not served until after Plaintiffs were forced to incur the time and expense associated with preparing and filing its motion to compel. Moreover, the responses to Defendant Horton's Form Interrogatories, Set Two, and Request for Production of Documents, Set Two were not substantially compliant with Code of Civil Procedure §§ 2030.290 and 2031.300. Defendants have not provided any substantial justification for the failure to timely serve the responses, nor

have they provided the Court with any reason why the imposition of sanctions would be unjust. Accordingly, Plaintiffs are awarded \$1,995.00 in monetary sanctions payable by Defendants, jointly and severally, within thirty (30) days of the Court's order.

TENTATIVE RULING #3:

PLAINTIFFS' REQUEST TO COMPEL RESPONSES TO FORM INTERROGATORIES, SET TWO, AND REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO, AS TO DEFENDANT HORTON IS GRANTED. DEFENDANT HORTON IS ORDERED TO SERVE VERIFIED, CODE-COMPLIANT RESPONSES WITHOUT OBJECTIONS TO ALL REQUESTS WITHIN TEN (10) DAYS OF THE COURT'S ORDER.

PLAINTIFFS' REQUEST FOR SANCTIONS IS GRANTED IN THE AMOUNT OF \$1,995.00 PAYABLE BY DEFENDANTS, JOINTLY AND SEVERALLY, WITHIN THIRTY (30) DAYS OF THE COURT'S ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.